

Court No. - 3

Case :- WRIT - C No. - 14482 of 2022

Petitioner :- Mohd. Tasleem Parvez

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Anil Kumar Savita

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the respondent-State and Shri Madan Mohan Chaurasia, learned counsel for the respondent nos.2 and 3.

2. This writ petition has been filed praying for the following relief :-

"i) Issue a writ, order or direction in nature of certiorari to quash/set aside impugned recovery citation dated 30.12.2021 bearing amount Rs.1,18,722/-, passed by respondent no.2".

3. Learned counsel for the respondent nos.2 and 3 states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the

objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 25.5.2022

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